

		<i>Psychcare Servs., Inc.</i> (2000) 24 Cal.4th 83, 114.) However, they need not be present in the same degree. (<i>Ibid.</i>) A sliding scale approach is used and the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required. (<i>Ibid.</i>) Plaintiff has shown there is some minimal degree of procedural unconscionability but has failed to show the agreement to arbitrate is substantively unconscionable. Since the Court grants the motion to compel arbitration based on the arbitration agreement contained in the Warranty, the court does not reach HMA's argument that it can compel arbitration pursuant to the CSA. The Court will set a post-arbitration status conference for a future date to be determined on July 6, 2026. The parties are ORDERED to file a Status Report 5 days prior. The Case Management Conference set for 8/3/26 at 8:30 AM in Department C15 is vacated. Moving Defendant to give notice.
9	Tsirsis v. Pacific Hospital Long Beach 2021-01234325 Motion for Summary Judgment/Adjudication.	Defendant Dr. Ian Armstrong's Motion for Summary Judgment/Adjudication is CONTINUED to 8/3/26. This case was filed on 12/2/21 and Plaintiff has had approximately four years and six months to obtain and present evidence supporting his claims against Defendant. Nonetheless, in light of California law favoring adjudication on the merits, the Court will give Plaintiff a final opportunity to withdraw the deemed admissions and present admissible evidence in support of his opposition to summary judgment. The motion is continued to 8/3/26, to be heard after Plaintiff's motion to withdraw the admissions. Plaintiff shall file and serve a supplemental brief in opposition, which must be supported by a separate statement and admissible evidence, no later than 7/24/26. (Code Civ. Proc. § 437c; California Rule of Court 3.1350(e).) Defendant may file and serve a supplemental response no later than 7/28/26. The supplemental memoranda of points and authorities shall not exceed five pages each.